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File No.: EXP202302862

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on February 16, 2023. The complaint is directed against Mr. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) that he has installed a camera on his property, on a post at considerable height which, due to its location and orientation, is capable of capturing images of the complainant's property, without having authorization for it (…)—page no. 1—

He provides images of the camera's location (Documentary Annex I Images 1-4)

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on March 3, 2023, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified to the address indicated as per the administrative file, without any explanation being provided to this agency in this regard.

THIRD: On May 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On August 11, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

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Article 64.2.f) of the LPACAP -a provision of which the respondent was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

Consultation of the database of this Agency confirms the timely and proper notification of the Initiation Agreement associated with PS/00251/2023 on August 30, 2023, as certified by the Official Postal and Telegraph Service.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

First. The facts arise from the complaint dated February 16, 2023, through which the following is conveyed:

“(…) that he has installed a camera on his property, on a post at considerable height which, due to its location and orientation, is capable of capturing images of the complainant's property, without having authorization for it (…)—page no. 1—

Second. B.B.B., NIF ***NIF.1, is identified as the main responsible party.

Third. The presence of an image-capturing device directed towards the private area of the neighboring owner, affecting their personal and/or family privacy, is confirmed, without any allegations being made in this regard.

Fourth. It is confirmed in the system that the notification of the Initiation Agreement was delivered to the indicated address, being delivered as certified by the Official Postal Service to C.C.C., with DNI ***NIF.1.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the modifications made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, the migration of highly qualified persons, taxation, and the digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

II

In the present case, the complaint dated 02/16/23 is examined, through which the presence of a video surveillance camera in the rooftop area is reported, which could affect the rights of third parties without justified cause.

The documentary evidence provided (Annex I) determines the presence of a camera placed in the rooftop area of the nearby property, which could disproportionately affect private areas.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').”

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Moreover, this type of device cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, under the terms of the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

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It is worth noting that even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief of being subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the areas of third parties who feel intimidated by them, as they affect their free transit area.

III

In accordance with the evidence provided in the present sanctioning procedure, it is considered that the party complained against has proceeded to install a video surveillance camera in the rooftop area, without complying with the requirements established in the applicable regulations, which, according to the evidence provided, could affect the private sphere of third parties.

The party complained against has been aware of the facts presented but has not provided any explanation or taken corrective measures in this regard, with the evidence provided being decisive for the presence of the device and its improper orientation.

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that "they shall prescribe after three years," particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

The known facts are therefore constitutive of an infringement, attributable to the party complained against, for violating the content of Article 5.1 c) of the GDPR, previously mentioned.

IV

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

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a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

When justifying the sanction, it is taken into account that the device is installed in the rooftop area, which suggests an impact on the rights of third parties that could even affect their privacy disproportionately, considering the conduct as grossly negligent in relation to the facts presented, which justifies a sanction of €300, a penalty situated at the lower end of the scale for this type of conduct.

V

The text of the resolution establishes what the committed infringements have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures

are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Persistence in infringing conduct, maintaining the device in question poorly oriented, may lead to new sanctioning procedures where the attitude of the responsible party will be taken into account regarding the grading of the sanction to be imposed, which is brought to their attention for the appropriate legal effects.

Therefore, in accordance with the applicable legislation and having assessed the criteria for grading the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €300 (three hundred euros).

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 15 business days, prove that they have complied with the following measure:

Removal and/or reorientation of the installed device, providing a photograph with date and time that evidences the before and after for analysis by this agency.

THIRD: TO NOTIFY this resolution to the respondent B.B.B.

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FOURTH: This resolution shall become executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months

from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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